

THE GAZETTE OF INDIA
EXTRAORDINARY
PART – III – SECTION 4

PUBLISHED BY AUTHORITY
SECURITIES AND EXCHANGE BOARD OF INDIA
NOTIFICATION
Mumbai, the 5th August, 2020

SECURITIES AND EXCHANGE BOARD OF INDIA (EMPLOYEES' SERVICE))
(AMENDMENT) REGULATIONS, 2020

No. SEBI/ LAD-NRO/GN/2020/26 — In exercise of the powers conferred by section 30 of the Securities and Exchange Board of India Act, 1992 (15 of 1992), the Board hereby makes the following regulations to further amend the Securities and Exchange Board of India (Employees' Service) Regulations, 2001, namely, -

1. These regulations may be called the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2020.
2. They shall come into force on the date of their publication in the Official Gazette.
3. In the Securities and Exchange Board of India (Employees' Service) Regulations, 2001,—
(1) after the second proviso to regulation 16(1), third proviso shall be inserted, namely,-

“Provided further that an employee working as Junior Secretarial Assistant, Junior Accounts Assistant, Junior Library Assistant or Junior Engineer, who has completed minimum seven years of service and possesses the requisite qualifications for Officer Grade A as given in these Regulations, may be considered for switch over to Grade A in the Officer cadre against the vacancies, which shall be within the overall 10% vacancies as mentioned in the second proviso and as may be notified by the Competent

Authority subject to such employee qualifying in the departmental test conducted by the Competent Authority or by an outside agency engaged by the Board and interview to be conducted by the Competent Authority for this purpose.”

(2) in the Schedule, –

- (i) the text of row 2 relating to the post of “Executive Director” under the headings mentioned in the six columns shall be substituted by the following, namely, -

Name of the post	Mode of Recruitment & proportion of posts to be filled up through different modes	Age, Qualification & Experience for Direct recruits/Contract Recruits, wherever applicable	Length of service for promotion	Qualification & Experience for Deputation	Composition of the selection Committee
Executive Director [other than the designated post of Executive Director (Law)]	(a) Promotion; (b) Deputation from Govt., RBI, Banks, Financial Institutions & Academic institutions; (c) On contract basis 2/3 rd of the total posts from internal	Not less than 40 years and not more than 55 years. MBA/MMS (with specialization in Finance) / CA / CS /CFA / CWA/ LLB/ Post Graduation in Economics, Finance or any other discipline	Promotion of internal candidates from Grade F of all streams except Legal stream with minimum of 3 years’ service in	Deputation from Govt., RBI, Banks, Financial Institutions, with not less than 20 years of experience in dealing with problems relating to securities market or	Chairman, two other members of the Board and two external experts to be nominated by the Chairman shall constitute the Selection

	candidates and the remaining 1/3rd to be filled up by deputation / contract. In case of non-availability in any category i.e. internal and deputation/ contract, the post may be filled from other categories.	which in the opinion of the Board is useful, from a recognized University /Institution with a minimum of 20 years of post-qualification experience in dealing with problems relating to securities market or special knowledge / experience of law, investigation, Finance, Economics, Accountancy, Administration or any other discipline.	the said grade	special knowledge / experience of law, investigation, Finance, Economics, Accountancy, Administration or any other discipline considered useful to the Board.	Committee. In case of deputation from Govt. or other organizations, terms and conditions of deputation to be finalized in consultation with the lending organization .
Executive Director (Law)		LLB from a recognized University/ Institution with a	Promotion of internal candidates from	Deputation from Govt., RBI, Banks, Financial	

		minimum of 20 years of post-qualification experience in law.	Grade F of legal stream with minimum of 3 years' service in the said grade	Institutions, having an LLB from a recognized University/ Institution with not less than 20 years of post-qualification experience in law.	
--	--	--	--	--	--

Sd/-

AJAY TYAGI
CHAIRMAN

SECURITIES AND EXCHANGE BOARD OF INDIA

Footnotes:

1. The Securities and Exchange Board of India (Employees' Service) Regulations, 2001, were published in the Gazette of India on 6th September, 2001 vide S.O. No. 857(E).

2. They were subsequently amended –

(a) On 23rd December, 2003 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2003 vide F. No. SEBI/LE/15/2003.

(b) On 25th May, 2004 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2004 vide S.O. No.623 (E).

- (c) On 11th April, 2007 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2007 vide F. No.11/LC/GN/2006/2143.
- (d) On 14th January, 2010 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2010 vide notification No. LADNRO/GN/2009-10/28/190983.
- (e) On 12th October, 2010 by the Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2010 vide notification No. LAD-NRO/GN/2010-11/17/22954.
- (f) On 10th October, 2011 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2011 vide notification No. LAD-NRO/GN/2011-12/26/31671.
- (g) On 2nd May 2012 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2012 vide notification No. LADNRO/GN/2012-13/03/5290.
- (h) On 19th November 2012 by the Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2012 vide notification No. LAD-NRO/GN/2012-13/223/5429.
- (i) On 8th October, 2013 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2013 vide notification No. LADNRO/GN/2013-14/27/6721.
- (j) On 26th February, 2015 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2015 vide notification No. LAD-NRO/GN/2014-15/22/366.
- (k) On 21st April, 2015 by Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2015 vide notification No. SEBINRO/OIAE/GN/2015-16/002.
- (l) On 30th November, 2016 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2016 vide notification No. SEBI/LAD/NRO/GN/2016-17/016.

- (m) On 15th December, 2016 by Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2016 vide notification No. SEBI/LAD/NRO/GN/2016-17/024.
- (n) On 27th April, 2017 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2017 vide notification No. SEBI/LAD/NRO/GN/2017-18/001.
- (o) On 17th May, 2017 by Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2017 vide notification No. SEBI/LAD/NRO/GN/2017-18/002.
- (p) On 13th July, 2017 by Securities and Exchange Board of India (Employees' Service) (Third Amendment) Regulations, 2017 vide notification No. SEBI/LAD-NRO/GN/2017-18/010.
- (q) On 27th April, 2018 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2018 vide notification No. SEBI/LAD-NRO/GN/2018/09.
- (r) On 31st May, 2018 by Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2018 vide notification No. SEBI/LAD-NRO/GN/2018/18.
- (s) On 13th August, 2018 by Securities and Exchange Board of India (Employees' Service) (Third Amendment) Regulations, 2018 vide notification No. SEBI/LAD-NRO/GN/2018/29.
- (t) On 8th May 2019 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2019 vide notification No. SEBI/LAD-NRO/GN/2019/15.
